

COMMONWEALTH OF MASSACHUSETTS
BOSTON MUNICIPAL COURT DEPARTMENT OF THE TRIAL COURT
[BMC DIVISION – CONFIRM VENUE PER AMENDED STANDING ORDER NO. 1-09]

COMMONWEALTH OF MASSACHUSETTS,
Respondent,

v.

JANE DOE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

CONSOLIDATED PETITION TO SEAL CRIMINAL RECORDS PURSUANT TO G.L. c. 276, § 100C AND
BOSTON MUNICIPAL COURT DEPARTMENT AMENDED STANDING ORDER NO. 1-09

STATUTORY AUTHORITY

G.L. c. 276, § 100C – Non-conviction sealing: not-guilty, no-bill, and no-probable-cause records are to be sealed by the Commissioner of Probation and the court/probation offices unless the defendant makes a written request not to seal; dismissals and nolle prosequi require a court petition and a finding that substantial justice would best be served by sealing.

Boston Municipal Court Department Amended Standing Order No. 1-09 – The Boston Municipal Court Department permits a single consolidated petition to seal three or more criminal records from two or more BMC divisions, under a Standing Order revised after Pon to conform to the new legal standard. It is a local implementation of the ordinary § 100C judicial-sealing remedy, not a separate statewide remedy.

Commonwealth v. Pon, 469 Mass. 296 (2014) – The good-cause narrative across all listed records is participant-authored through structured prompts against the Pon factors.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Boston Municipal Court Department, Central Division, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in the territorial jurisdiction of the Boston Municipal Court Department (Central Division).

II. PARTIES

3. Petitioner is JANE DOE, whose address is 45 Sample Street, Apartment 2, Boston, MA 02118.

4. Respondent is the Commonwealth of Massachusetts.

III. FACTS AND CASE HISTORY

5. On or about various dates listed on the attached schedule, Petitioner was charged with three synthetic sample non-conviction cases from two Boston Municipal Court divisions, listed on the attached schedule by the agencies identified on the attached schedule (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: All listed cases ended

without conviction: two dismissals and one nolle prosequi (synthetic sample dispositions). [DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Petitioner may be eligible for sealing on the following basis: consolidated sealing of three or more non-conviction records from two or more Boston Municipal Court divisions under G.L. c. 276, § 100C and Amended Standing Order No. 1-09.

9. No waiting period applies: each listed case ended in dismissal, nolle prosequi, no probable cause or not guilty, the same as the ordinary judicial sealing route.

10. Petitioner states, in Petitioner's own words, the specific problems these records have caused: repeated denials of housing applications (synthetic sample narrative).

11. Petitioner states, in Petitioner's own words, what Petitioner has done since the cases ended: steady employment and completion of a training program (synthetic sample narrative).

12. Petitioner has checked the attached schedule of cases against Petitioner's own CORI obtained from the Department of Criminal Justice Information Services.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the sealing of the criminal records listed on the attached schedule of Boston Municipal Court cases (three or more records from two or more BMC divisions) in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to seal all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JANE DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JANE DOE

45 Sample Street, Apartment 2, Boston, MA 02118

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

ATTACHMENTS

Attachments submitted with this petition:

- Schedule of Boston Municipal Court cases to be sealed (division and docket number for each listed case)

- Petitioner's good-cause narrative addressing the Pon factors (participant-authored)

Prepared by petitioner using LegalEase RCAP. This is not an official court form.